

23BBCV00359 23BBCV00359

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Case Number: 23BBCV00359 Hearing Date: August 27, 2026 Dept: V

Tentative Ruling on 23BBCV00359 Pagliari vs Mulvaney

BACKGROUND

This case involves a wrongful death arising out of a motor vehicle accident. Plaintiffs brought this action against the driver, defendant John Elliott Mulvaney, and unnamed Doe defendants. Plaintiffs later amended their complaint to substitute defendants Mulvaney Ranch LLC; 5223 Monte Vista LLC; Ave 54 and Charter Funding Group (also referred to as the defendants previously named as Doe defendants).

This case proceeded to trial with Defendant Mulvaney appearing. The jury returned a verdict in favor of plaintiffs based on evidence that defendant Mulvaney negligently caused a car crash that resulted in the death of Ynocencia Garcia Valdez and that injured plaintiff Claudette Astrid Peiris.

On January 8, 2026, the court entered default against defendants Mulvaney Ranch LLC; 5223 Monte Vista LLC; Ave 54 and Charter Funding Group. Plaintiffs now seek to enter default judgment against the defaulted defendants in the amount of \$4,710,000.00. In support of the default judgments plaintiffs initially offered the declarations of Plaintiffs Amanda Pagliari and Claudette Astrid Peiris. (1/8/26 Declarations of Pagliari and Peiris). On January 13, 2026 the court denied the proposed judgments on the basis that the judgements were not supported by the declaration provided as required under CCP 585(d). Plaintiffs subsequently submitted updated proposed default judgment and offered the declaration of Nick Erzumyan. Mr. Erzumyan stated that that he had personally attended the deposition of Defendant Mulvaney on August 17, 2023. Mr. Erzumyan states that during his deposition, Defendant Mulvaney testified under oath that he is the "sole owner" of Defendant MULVANEY RANCH, LLC (Exhibit B at 18:8-11); the fifty (50) percent "part owner" of Defendant 5223 MONTE VISTA LLC(Exhibit B at 18:20-25, 19:1); the "50 percent" owner of Defendant AVE 54 (Exhibit B at 19:21-25, 20:1); and that he was involved in Defendant CHARTER FUNDING GROUP, which is no longer active. (6/12/2026 Erzumyan Decl. Paragraph 2.)

The court has reviewed the additional declarations offered by plaintiffs and finds that plaintiffs have not provided sufficient evidence to support the requested default judgment.

DISCUSSION

"Substantively, "[t]he judgment by default is said to 'confess' the material facts alleged by the plaintiff, i.e., the defendant's failure to answer has the same effect as an express admission of the matters well pleaded in the complaint.' The 'well-pleaded allegations' of a complaint refer to ' " "all material facts properly pleaded, but not contentions, deductions or conclusions of fact or law." ' " (Kim v. Westmoore Partners, Inc. (2011) 201 Cal. App. 4th 267, 281 (citations omitted).) "[I]f the well-pleaded allegations of the complaint do not state any proper cause of action, the default judgment in the plaintiff's

favor cannot stand.” (Id.)

The allegations in the Complaint pertaining to defendants Mulvaney Ranch LLC; 5223 Monte Vista LLC; Ave 54 and Charter Funding Group are as follows:

“Plaintiffs are informed and believe and thereon allege that each of these defendants fictitiously named herein as a Doe is legally responsible, negligent, or in some other actionable manner liable for the events and happenings hereinafter referred to, and proximately and legally caused the injuries to Plaintiffs and Decedent as hereinafter alleged. Plaintiffs will seek leave of the court to amend this Complaint to insert the true names and/or capacities of such fictitiously-named defendants when the same has been ascertained. (Complaint, paragraph 6.)

The Complaint further alleges that “Plaintiffs are informed and believe and thereon allege that at all times mentioned herein, Defendants, and each of them, including Does 1 through 50, inclusive, were the agents, servants, employees, and/or joint venturers of their co-defendants, and were, as such, acting within the course, scope, and authority of said agency, employment, and/or venture and that each and every defendant, as aforesaid, when acting as a principal, was negligent in the selection and hiring of each and every other Defendant as an agent, employee and/or joint venture. (Complaint, paragraph 7.)

Paragraph 13 alleges that “Defendant John Elliot Mulvaney and/or Does 1 to 50 owed a duty to the Plaintiffs and all other persons to drive, own, operate, maintain, entrust, and otherwise have direct responsibility and control over their motor vehicle in a reasonable safe manner and in accordance with laws governing operation of such vehicles on a public roadway. These duties were breached and these breaches proximately caused the collision set forth above, including the death of the Decedent.”

Paragraph 24 alleges that “Defendant John Elliot Mulvaney and/or Does 1 to 50 owed a duty to the Plaintiffs and all other persons to drive, own, operate, maintain, entrust, and otherwise have direct responsibility and control over their motor vehicle in a reasonable safe manner and in accordance with laws governing operation of such vehicles on a public roadway. These duties were breached and these breaches proximately caused the collision set forth above, including the death of the Decedent.”

The evidence at trial was that Defendant Mulvaney was driving the car and caused the crash that injured plaintiffs. Accordingly based on the allegations in the complaint, plaintiff’s theory of liability as to defendants Mulvaney Ranch LLC; 5223 Monte Vista LLC; Ave 54 and Charter Funding Group is necessarily based on a theory that Mr. Mulvaney was acting as an agent or employee of the defaulted defendants at the time of the accident.

The Complaint in this case does not contain any material factual allegations as to the nature of any agency or employment relationship between Mr. Mulvaney and defaulted defendants. Instead, the complaint contains conclusory allegations that all defendants were “the agents, servants, employees, and/or joint venturers of their co-defendants, and were, as such, acting within the course, scope, and authority of said agency, employment, and/or venture and that each and every defendant.” Those allegations may be sufficient to allege agency, (Skopp v. Weaver, (1976)16 Cal. 3d 432, 439), but standing alone they are insufficient to support a default judgment. (Kim, supra, 201 Cal. App. 4th 267, 281.) As the court explained in Kim, “deductions or conclusions of fact or law” do not support a default judgment. (Id.)

Under these circumstances, more is required from plaintiffs. As the court has explained to plaintiff’s counsel on January 13, 2026, there was no evidence at trial and no evidence offered in support of default judgment that supports the existence of an agency or employment relationship between Mr. Mulvaney and the defaulted defendants.

In response to the court’s denial of the previously proposed default judgment, plaintiffs offer the declaration of Mr. Erzumyan who states that he was present at the deposition of Defendant Mulvaney who testified under oath that he is the “sole owner” of Defendant MULVANEY RANCH, LLC; the fifty (50) percent “part owner” of Defendant 5223 MONTE VISTA LLC; the “50 percent” owner of Defendant AVE 54; and that he was involved in Defendant CHARTER FUNDING GROUP, which is no

longer active.

Ownership, partial ownership, and "involvement" do not create an agency or employment relationship. Accordingly, the Erzumyan declaration does not establish an agency or employment relationship between Mr. Mulvaney and the defaulted defendants. It also does not establish that Mr. Mulvaney was acting as an agent for one or all of the defaulted defendants at the time of the accident. And it does not establish that Mr. Mulvaney, if employed by any or all of the defaulted defendants, was acting within the scope of any such employment when he caused the accident.

Based on the foregoing, the court denies the default judgment in this matter.